

23CMCV01379 23CMCV01379

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-31

Motion: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

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Case Number: 23CMCV01379 Hearing Date: August 31, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ORLANDO GARCIA,

Plaintiff,

vs.

NADAR

LUCKY 7 INC.,

Defendant.

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CASE NO: 23CMCV01379

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

Dept.

A

DATE:

August 31, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 08/25/2023

DISPOSED:

08/22/2025

MOVING

PARTY: Plaintiff Orlando
Garcia

RESPONDING

PARTY: None

1. Background

This is an ADA compliance action. Plaintiff Orlando Garcia ("Plaintiff") alleged that defendant Nadar Lucky 7 Inc. ("Defendant") owned the property located at 11508 Wilmington Ave., Los Angeles, CA (the "Property") at all relevant times. Plaintiff alleged that the Property was noncompliant with ADA requirements.

On August 22, 2025, the court dismissed this action in connection with a settlement agreement and retained jurisdiction pursuant to Code of Civil Procedure § 664.6.

2. Discussion

Plaintiff moves to enforce the settlement. Plaintiff contends that Defendant has failed to perform under the settlement agreement. Defendant has not opposed this motion.

Code of Civil Procedure § 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. *See* (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37 (Sully-Miller)). *See* To enforce a written settlement agreement under Code of Civil Procedure § 664.6, the following three elements must be met: (1) the parties must have come

to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties, an attorney who represents the party, or an agent authorized by an insurer to sign on the party's behalf. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 797-98; Code Civ. Proc. § 664.6.)

Plaintiff has

stated that Defendant failed to comply with the settlement agreement by failing to make payments. However, Plaintiff has not clearly stated, in the notice of motion or motion, what payment obligations Defendant possessed and breached. Moreover, Plaintiff's settlement agreement is provided only in redacted form, with the actual payment terms unavailable for the court's review. Plaintiff filed a motion to seal the settlement agreement alongside the instant motion, but the motion to seal has been denied. Although Plaintiff contends that the unredacted settlement agreement was lodged with the court, no notice of lodging was filed and the court has no record of receipt of any lodged document nor does it have it in the court's possession. Plaintiff has therefore violated California Rules of Court, rules 2.550 and 2.551.

The court will

accordingly decline to enforce the settlement agreement.

3. Conclusion

Based on the

foregoing, the court DENIES Plaintiff's motion to enforce the settlement agreement.

Plaintiff is ordered to give notice.

IT IS SO ORDERED.

DATED: August 31, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court